



Ulster Defence Regiment Act 1969

1969 CHAPTER 65

An Act to establish the Ulster Defence Regiment and for purposes connected therewith. [18th December 1969]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) It shall be lawful for Her Majesty to establish and maintain a force to be called the Ulster Defence Regiment (hereafter in this Act referred to as “the force”) consisting of such number as may from time to time be determined by Parliament of such men as may voluntarily undertake to serve therein and as may be accepted for such service. Establishment and status of Ulster Defence Regiment.

(2) Members of the force shall be members of the armed forces of the Crown; and—

- (a) any holder of a land forces commission who is for the time being assigned for duty with the force, and any other member of the force when serving on the permanent staff of the force, shall be subject to military law;
- (b) any member of the force to whom paragraph (a) of this subsection does not apply shall be subject to military law—

(i) at all times when called out for service under section 2 of this Act or when undergoing training whether in pursuance of an obligation under that section or not; and

(ii) at any other time when he is in possession, or when, in pursuance of any order given or permission granted by a superior officer of his, he is required or authorised to be in possession, of any arms or

ammunition or of any prescribed description of equipment, being arms, ammunition or equipment belonging to Her Majesty.

1955 c. 18.

(3) References in Parts II to V of the Army Act 1955 to the regular forces shall include references to members of the force while subject to military law but save as aforesaid references in that Act to the regular forces shall not include references to the force.

(4) The following provisions shall have effect as to the enrolment, re-engagement and resignation of members of the force otherwise than as officers thereof, namely—

- (a) a person volunteering and accepted for service in the force shall be enrolled for a prescribed period not exceeding three years;
- (b) a member of the force may, if he so desires and is accepted for re-engagement, re-engage from time to time for a further such period;
- (c) a member of the force may if he so desires cease to be a member thereof upon the expiration of one month's notice of his desire so to cease given in writing to his commanding officer;

but a person shall not cease to be a member of the force by virtue of paragraph (a), (b) or (c) of this subsection if immediately before the expiration of the period for which he was enrolled, or the period for which he re-engaged, or the period of his notice, as the case may be, he is on permanent service in pursuance of section 2(3) or (4) of this Act.

(5) Subject to the provisions of subsection (4) of this section, the conditions for the acceptance of persons as members of the force and the conditions of service of members thereof (including conditions as to pay, allowances and pensions or other grants in respect of death or disablement) shall be such as may be prescribed; and orders or regulations shall make provision for the organisation, administration, government and duties of the force, but shall not require members of the force to give whole-time service except during any period during which the force or the part of it to which they belong is called out under subsection (2), (3) or (4), or they are undergoing training under paragraph (a) of subsection (5), of section 2 of this Act and shall not require members of the force to serve or train outside Northern Ireland.

1948 c. 21.

(6) Section 3(1) of the Army and Air Force (Women's Service) Act 1948 (which provides for the application to women of certain enactments relating to men) shall not apply to this Act.

Liabilities for service and training.

2.—(1) The Secretary of State may grant authority in writing to any designated officer of the regular forces within the meaning of the Army Act 1955 of a rank not lower than major to exercise

the powers conferred by subsection (2) of this section with or without authority for that officer in turn to authorise any other officer designated by him, being such an officer of the regular forces as aforesaid, to exercise those powers; and any authorisation in pursuance of this subsection may be given either in general terms or subject to specified limitations.

(2) Any officer authorised in accordance with subsection (1) of this section to exercise the powers conferred by this subsection may, subject to the terms of his authority, call out the force or any part of it for emergency service in Northern Ireland if, and for so long as, it appears to that officer to be necessary or expedient for the defence of life or property in Northern Ireland against armed attack or sabotage, whether actual or apprehended.

(3) The force shall be liable to be called out for permanent service in Northern Ireland in defence of the United Kingdom against actual or apprehended attack; and this subsection shall be a relevant enactment within the meaning of section 9 of the Reserve Forces Act 1966 (which relates to call-out notices). 1966 c. 30.

(4) An order under section 5(1) of the said Act of 1966 (which relates to the calling out of reserves where it appears to Her Majesty that national danger is imminent or that a great emergency has arisen) may authorise the calling out of the force for permanent service in Northern Ireland; and, for the purposes of this subsection, the said section 9 shall apply as if the force were a reserve force within the meaning of the said section 5.

(5) Subject to subsection (6) of this section any member of the force may, in accordance with regulations, be required to undergo training in Northern Ireland in any year—

(a) for one or more periods which shall not exceed twelve days in the aggregate and of which—

(i) none shall exceed eight consecutive days; and

(ii) except with his consent, not more than two shall exceed thirty-six consecutive hours; and

(b) for such other periods as may be prescribed, none of which shall except with his consent exceed two hours, and may while so undergoing training be attached to and trained with any body of Her Majesty's forces which is for the time being in Northern Ireland.

(6) Regulations may make provision—

(a) for securing that subsection (5) of this section shall not apply to persons of such descriptions as may be prescribed to whom but for the regulations that subsection would apply;

- (b) for relaxing, in such cases as may be prescribed, the liability imposed by the said subsection (5) on members of the force.

- 1950 c. 10. (7) Where any person is, or is liable to be, called out under subsection (2), (3) or (4) of this section, the provisions of the Reinstatement in Civil Employment Act 1950 shall apply to that person as they apply to a person who has entered, or, as the case may be, may be required to enter, upon a period of whole-time service in the armed forces of the Crown in the circumstances mentioned in section 1(a) of that Act; and any service rendered by virtue of the said subsection (2), (3) or (4), and any continuous period of training of seven days or longer performed as a member of the force, whether in pursuance of an obligation under subsection (5) of this section or under voluntary arrangements, shall be relevant service within the meaning of the Reserve and Auxiliary Forces (Protection of Civil Interests) Act 1951; and, in the application of this subsection to Northern Ireland, references to the said Act of 1950 or 1951 shall be construed as references to that Act as it applies in Northern Ireland.
- 1951 c. 65.

**Punishment
for certain
offences.**

3.—(1) Any member of the force who—

- (a) when required by or in pursuance of regulations under section 2(5) of this Act to attend at any place fails without reasonable excuse to attend in accordance with the requirement, or
- (b) fails without reasonable excuse to comply with orders or regulations made under this Act,

shall, whether otherwise subject to military law or not, be guilty of an offence and liable on conviction by court-martial to a fine not exceeding £5; and the offence shall, for all purposes of and incidental to the trial of the offender, including the summary disposal of the case otherwise than by court-martial, be deemed to be an offence under the Army Act 1955.

1955 c. 18.

(2) Any person who, in Northern Ireland or elsewhere—

- (a) procures or persuades any member of the force to desert within the meaning of section 37 of the Army Act 1955 or to absent himself without leave; or
- (b) knowing that any member of the force is about to desert as aforesaid or to absent himself without leave, assists him in so doing; or
- (c) knowing any person to be a deserter within the meaning of the said section 37 or an absentee without leave from the force, procures or persuades or assists him to

remain such a deserter or absentee, or assists in his rescue from custody,

shall be liable on summary conviction to a fine not exceeding £50 or to imprisonment for a term not exceeding three months or to both, or on conviction on indictment to a fine not exceeding £500 or to imprisonment for a term not exceeding two years or to both.

4.—(1) In this Act—

Orders and regulations.

- (a) the expression “prescribed” means prescribed by orders or regulations;
- (b) except in section 6(2), references to orders are references to orders of Her Majesty signified under the hand of the Secretary of State; and
- (c) references to regulations are references to regulations made by the Secretary of State.

(2) Any power conferred by this Act to make an order shall include power to vary or revoke an order.

(3) Any order or regulations made under this Act shall be laid before Parliament after being made.

5. Any expenditure incurred by any government department which is attributable to the provisions of this Act shall be defrayed out of moneys provided by Parliament. Expenses.

6.—(1) This Act may be cited as the *Ulster Defence Regiment Act 1969*. Short title and commencement.

(2) This Act shall come into force on such date as the Secretary of State may by order made by statutory instrument appoint.